

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Pat Sample 1234 Main Street San Luis Obispo, CA 93401 TELEPHONE NO.: (805) 555-1234 FAX NO. (Optional): E-MAIL ADDRESS (Optional): ATTORNEY FOR (Name): Petitioner in Pro Per	FOR COURT USE ONLY SAMPLE STIPULATED JUDGMENT
SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Luis Obispo STREET ADDRESS: 1035 Palm Street, Room 385 MAILING ADDRESS: CITY AND ZIP CODE: San Luis Obispo, CA 93408 BRANCH NAME:	
MARRIAGE OR PARTNERSHIP OF PETITIONER: Pat Sample RESPONDENT: Sam Sample	
STIPULATED JUDGMENT ☒ DISSOLUTION ☐ Status only ☐ Reserving jurisdiction over termination of marital or domestic partnership status ☐ Judgment on reserved issues Date marital or domestic partnership status ends: 10/5/2011 ☐ LEGAL SEPARATION ☐ NULLITY	
CASE NUMBER: FL110572	

1. ☐ This judgment ☐ contains personal conduct restraining orders ☐ modifies existing restraining orders.
 The restraining orders are contained on page(s) _____ of the attachment. They expire on (date): _____
2. This proceeding was heard as follows: ☒ Default or uncontested ☐ By declaration under Family Code section 2336
☐ Contested ☐ Agreement in court
 - a. Date: _____ Dept.: _____ Room: _____
 - b. Judicial officer (name): _____ ☐ Temporary judge
 - c. ☐ Petitioner present in court ☐ Attorney present in court (name): _____
 - d. ☐ Respondent present in court ☐ Attorney present in court (name): _____
 - e. ☐ Claimant present in court (name): _____ ☐ Attorney present in court (name): _____
 - f. ☐ Other (specify name): _____
3. The court acquired jurisdiction of the respondent on (date): **4/4/2011**
 - a. ☒ The respondent was served with process.
 - b. ☐ The respondent appeared.

THE COURT ORDERS, GOOD CAUSE APPEARING

4. a. ☒ Judgment of dissolution is entered. Marital or domestic partnership status is terminated and the parties are restored to the status of single persons
 - (1) ☒ on (specify date): **10/5/2011**
 - (2) ☐ on a date to be determined on noticed motion of either party or on stipulation.
- b. ☐ Judgment of legal separation is entered.
- c. ☐ Judgment of nullity is entered. The parties are declared to be single persons on the ground of (specify): _____
- d. ☐ This judgment will be entered nunc pro tunc as of (date): _____
- e. ☐ Judgment on reserved issues.
- f. The ☒ petitioner's ☐ respondent's former name is restored to (specify): **Pat Midel Smith**
- g. ☐ Jurisdiction is reserved over all other issues, and all present orders remain in effect except as provided below.
- h. ☒ This judgment contains provisions for child support or family support. Each party must complete and file with the court a *Child Support Case Registry Form* (form FL-191) within 10 days of the date of this judgment. The parents must notify the court of any change in the information submitted within 10 days of the change, by filing an updated form. The *Notice of Rights and Responsibilities—Health-Care Costs and Reimbursement Procedures and Information Sheet on Changing a Child Support Order* (form FL-192) is attached.

Initials _____

CASE NAME (Last name, first name of each party):

Sample, Pat and Sam

CASE NUMBER:

FL1105724. i. ☒ The children of this marriage or domestic partnership are:(1) ☒ Name**Chad Sample
Cindy Sample**

Birthdate

1/2/05**5/2/10**(2) ☐ Parentage is established for children of this relationship born prior to the marriage or domestic partnershipj. ☒ Child custody and visitation (parenting time) are ordered as set forth in the attached(1) ☐ Settlement agreement, stipulation for judgment, or other written agreement which contains the information required by Family Code section 3048(a).(2) ☒ *Child Custody and Visitation Order Attachment* (form FL-341).(3) ☒ *Stipulation and Order for Custody and/or Visitation of Children* (form FL-355).(4) ☐ Previously established in another case. Case number:

Court:

k. ☒ Child support is ordered as set forth in the attached(1) ☐ Settlement agreement, stipulation for judgment, or other written agreement which contains the declarations required by Family Code section 4065(a).(2) ☐ *Child Support Information and Order Attachment* (form FL-342).(3) ☒ *Stipulation to Establish or Modify Child Support and Order* (form FL-350).(4) ☐ Previously established in another case. Case number:

Court:

l. ☒ Spousal, domestic partner, or family support is ordered:(1) ☐ Reserved for future determination as relates to ☐ petitioner ☐ respondent(2) ☐ Jurisdiction terminated to order spousal or partner support to ☐ petitioner ☐ respondent(3) ☒ As set forth in the attached *Spousal, Partner, or Family Support Order Attachment* (form FL-343).(4) ☐ As set forth in the attached settlement agreement, stipulation for judgment, or other written agreement.(5) ☐ Other (specify):m. ☒ Property division is ordered as set forth in the attached(1) ☐ Settlement agreement, stipulation for judgment, or other written agreement.(2) ☒ *Property Order Attachment to Judgment* (form FL-345).(3) ☐ Other (specify):n. ☐ Attorney fees and costs are ordered as set forth in the attached(1) ☐ Settlement agreement, stipulation for judgment, or other written agreement.(2) ☐ *Attorney Fees and Costs Order* (form FL-346).(3) ☐ Other (specify):o. ☒ Other (specify): **Attachment 4o.**

Each attachment to this judgment is incorporated into this judgment, and the parties are ordered to comply with each attachment's provisions. Jurisdiction is reserved to make other orders necessary to carry out this judgment.

Date:

JUDICIAL OFFICER

5. Number of pages attached: **18**☐ SIGNATURE FOLLOWS LAST ATTACHMENT**NOTICE**

Dissolution or legal separation may automatically cancel the rights of a spouse or domestic partner under the other spouse's or domestic partner's will, trust, retirement plan, power of attorney, pay-on-death bank account, transfer-on-death vehicle registration, survivorship rights to any property owned in joint tenancy, and any other similar property interest. It does not automatically cancel the rights of a spouse or domestic partner as beneficiary of the other spouse's or domestic partner's life insurance policy. You should review these matters, as well as any credit cards, other credit accounts, insurance policies, retirement plans, and credit reports, to determine whether they should be changed or whether you should take any other actions.

A debt or obligation may be assigned to one party as part of the dissolution of property and debts, but if that party does not pay the debt or obligation, the creditor may be able to collect from the other party.

An earnings assignment may be issued without additional proof if child, family, partner, or spousal support is ordered.

Any party required to pay support must pay interest on overdue amounts at the "legal rate," which is currently 10 percent.

Initials

PETITIONER/PLAINTIFF: **Pat Sample**
 RESPONDENT/DEFENDANT: **Sam Sample**
 OTHER PARENT:

CASE NUMBER:
FL110572

SPOUSAL, PARTNER, OR FAMILY SUPPORT ORDER ATTACHMENT

- TO ☐ Findings and Order After Hearing (form FL-340) ☒ Judgment (form FL-180)
☐ Restraining Order After Hearing (CLETS-OAH) (form DV-130) ☐ Other (specify):
☐ Stipulation of Parties

THE COURT FINDS

1. Net income. The parties' monthly income and deductions are as follows (complete a, b, or both):

	Total gross monthly income	Total monthly deductions	Total hardship deductions	Net monthly disposable income
a. Petitioner: ☐ receiving TANF/CalWORKS \$	3,010 \$	\$	\$	2,754
b. Respondent: ☐ receiving TANF/CalWORKS \$	7,000 \$	\$	\$	4,879

2. ☒ A printout of a computer calculation of the parties' financial circumstances is attached for all required items not filled out above (for temporary support only).

3. Judgment for spousal or partner support

- a. ☐ Modifies a judgment or order entered on (date):
 b. ☒ The parties were married for (specify numbers): 15 years ____ months.
 c. ☐ The parties were registered as domestic partners or the equivalent on (specify numbers): ____ years ____ months.
 d. ☐ The parties are both self-supporting, as shown on the Declaration for Default or Uncontested Dissolution or Legal Separation (form FL-170).
 e. ☐ The marital standard of living was (describe):

☐ See Attachment 3d.

THE COURT ORDERS

4. ☐ The issue of spousal or partner support for the ☐ petitioner ☐ respondent is reserved for a later determination.
 5. ☐ The court terminates jurisdiction over the issue of spousal or partner support for the ☐ petitioner ☐ respondent.
 6. a. The ☐ petitioner ☒ respondent must pay to the ☒ petitioner ☐ respondent as ☐ temporary ☒ spousal support ☐ family support ☐ partner support \$ 407 per month, beginning (date): 8/1/2011, payable through (specify end date):

☒ payable on the (specify): 1st day of each month.
☐ Other (specify):

- b. ☒ Support must be paid by check, money order, or cash. The support payor's obligation to pay support will terminate on the death of either party, remarriage, or registration of a new domestic partnership of the support payee.
 c. ☒ An earnings assignment for the foregoing support will issue. (Note: The payor of spousal, family, or partner support is responsible for the payment of support directly to the recipient until support payments are deducted from the payor's earnings, and for any support not paid by the assignment.)
 d. ☐ Service of the earnings assignment is stayed provided the payor is not more than (specify number): ____ days late in the payment of spousal, family, or partner support.

THIS IS A COURT ORDER.

SPOUSAL, PARTNER, OR FAMILY SUPPORT ORDER ATTACHMENT
 (Family Law)

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initials — —

PETITIONER/PLAINTIFF: **Pat Sample**
RESPONDENT/DEFENDANT: **Sam Sample**
OTHER PARENT:

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FL110572

7. ☐ The ☐ petitioner ☐ respondent should make reasonable efforts to assist in providing for his or her support needs.
8. ☐ The parties must promptly inform each other of any change of employment, including the employer's name, address, and telephone number.
9. ☐ This order is for family support. Both parties must complete and file with the court a *Child Support Case Registry Form* (form FL-191) within 10 days of the date of this order. The parents must notify the court of any change of information submitted within 10 days of the change by filing an updated form. A *Notice of Rights and Responsibilities (Health-Care Costs and Reimbursement Procedures) and Information Sheet on Changing a Child Support Order* (form FL-192) is attached.
10. ☐ Notice: If this form is attached to *Restraining Order After Hearing (CLETS-OAH) (Order of Protection)* (form DV-130), the orders issued on this form (FL-343) do not expire upon termination of the restraining orders issued on form DV-130.
11. ☐ Other orders (specify):

NOTICE: Any party required to pay support must pay interest on overdue amounts at the "legal" rate, which is currently 10 percent.

THIS IS A COURT ORDER.

SPOUSAL, PARTNER, OR FAMILY SUPPORT ORDER ATTACHMENT
(Family Law)

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initials — —